

**IN THE CIRCUIT COURT OF BENTON COUNTY, MISSOURI**

**FILED**

Sep 08, 2026

NSI 6, LLC,

Plaintiff,

v.

BENTON COUNTY, MISSOURI,

STEVE DALESKE, in his official capacity  
as Presiding Commissioner of  
Benton County, Missouri,

SCOTT HARMS, in his official capacity as  
North Side District Commissioner of  
Benton County, Missouri, and

LARRY BERRY, in his official capacity as  
South Side District Commissioner of  
Benton County, Missouri,

Defendants.

**Clerk of the Circuit Court**

**Benton County**

Case No. 26BE-CC00056

**TEMPORARY RESTRAINING ORDER**

Upon reading the Motion for Temporary Restraining Order of Plaintiff NSI 6, LLC ("Plaintiff"), and Plaintiff's verified Petition, let Defendants Benton County, Missouri; Steve Daleske, in his official capacity as Presiding Commissioner of Benton County, Missouri; Scott Harms, in his official capacity as North Side District Commissioner of Benton County, Missouri; Larry Berry, in his official capacity as South Side District Commissioner of Benton County, Missouri show cause before the Circuit Court of Benton County, Missouri on September 21, 2026, at 1:00 p.m., or as soon thereafter as counsel can be heard, why a preliminary injunction should not be granted enjoining Defendants, their agents, servants, employees, and those persons acting in concert or participation therewith, from enforcing, applying, implementing, or threatening to enforce the August 10, 2026 "Order and Ordinance of



Court Document Not an Official Court Document Not an Official Court Document Not an Official Court Document  
County Commission of Benton County, Missouri—An Order and Ordinance Enacting a  
Official Court Document Not an Official Court Document Not an Official Court Document  
Temporary Moratorium on Data Centers Within Benton County, Missouri for Purposes of Due  
Not an Official Court Document Not an Official Court Document Not an Official Court Document  
Diligence” (the “August 10, 2026 Benton County Commission Order”) against Plaintiff, the real  
Document Not an Official Court Document Not an Official Court Document Not an Official Court Document  
property located in unincorporated Benton County, Missouri, commonly identified as Parcel  
Number 142009000001006000, and legally described as follows:

an Official Court Document Not an Official Court Document Not an Official Court Document  
THAT PART OF THE NORTHEAST QUARTER (NE¼) OF THE NORTHWEST  
QUARTER (NW¼) LYING WEST OF THE CENTER LINE OF HIGHWAY 65  
ACQUIRED AT CIRCUIT COURT CASE NO. 10283 DATED MARCH 26, 1926,  
AND NORTH OF THE NORTH LINE OF U.S. ACCESS ROAD "A" ACQUIRED AT  
BOOK 285, PAGE 575, AND EAST OF THE EAST LINE OF HIGHWAY 65  
RELOCATED ACQUIRED AT BOOK 331, PAGE 742; IN SECTION NINE (9),  
TOWNSHIP FORTY (40) NORTH, RANGE TWENTY-TWO (22) WEST OF THE  
FIFTH PRINCIPAL MERIDIAN IN BENTON COUNTY, MISSOURI.  
rial Court Document Not an Official Court Document Not an Official Court Document Not an Official Court Document

(the “Property”), or Plaintiff construction and operation of a data-center project on the Property  
(the “Project”).  
ent Not an Official Court Document Not an Official Court Document Not an Official Court Document

And, after notice and hearing, it appearing to the Court that Defendants will enforce and  
urt Document Not an Official Court Document Not an Official Court Document Not an Official Court Document  
apply the August 10, 2026 Benton County Commission Order against Plaintiff, the Property, or  
the Project unless restrained by order of this Court; and it further appearing that immediate and  
irreparable injury, loss, and damage will result to Plaintiff; and it further appearing that  
Defendants received notice at least twenty-four hours before the date and time set for the hearing  
on the temporary restraining order, it is:  
urt Document Not an Official Court Document Not an Official Court Document Not an Official Court Document

Official Court Document Not an Official Court Document Not an Official Court Document Not an Official Court Document  
Not an Official Court Document Not an Official Court Document Not an Official Court Document



ORDERED that pending the hearing and determination of Plaintiff's Motion for Preliminary Injunction, or the expiration of fifteen (15) days from the date hereof, whichever shall first occur, Defendants are hereby restrained and enjoined from enforcing, applying, implementing, or threatening to enforce the August 10, 2026 Benton County Commission Order against Plaintiff, the Property, or the Project;

IT IS FURTHER ORDERED that Plaintiff shall file a bond in the sum of \$10,000.00;

IT IS FURTHER ORDERED that service of a copy of this Order to Show Cause shall be made upon Defendants on or before September 11, 2026, by 3:00 p.m.

Date: 9/08/2026

  
James K. Journey, Senior Judge

COURT SEAL OF



BENTON COUNTY

